

FEDERAL MARITIME COMMISSION

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HANGZHOU QIANWANG DRESS CO., LTD. Docket No. 17-02

Complainant, **NOTICE OF APPEARANCE**
-against-

RDD FREIGHT INTERNATIONAL INC.

Respondent.

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TO: SECRETARY OF THE COMMISSION

Respondent RDD FREIGHT INTERNATIONAL INC., by and through its undersigned counsel REN RONG PAN, ATTORNEY AT LAW, hereby enters appearance and requests that all papers be served on his law office located at: **11 East Broadway, Suite 4B, New York, NY 10038.**

Dated: New York, New York
March 24, 2017

Respectfully submitted,



REN RONG PAN, Attorney at Law
Attorney for Respondent
RDD FREIGHT INTERNATIONAL INC.
11 East Broadway, Suite 4B
New York, NY 10038
(212) 406-5533

FEDERAL MARITIME COMMISSION

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HANGZHOU QIANWANG DRESS CO., LTD. Docket No. 17-02

Complainant,

**RESPONDENT'S VERIFIED ANSWER
WITH COUNTERCLAIM**

-against-

RDD FREIGHT INTERNATIONAL INC.

Respondent.

-----X

Respondent RDD FREIGHT INTERNATIONAL INC. ("RDD"), by and through the undersigned attorney, REN RONG PAN ATTORNEY AT LAW, as and for its Verified Answer to the Verified Complaint of the captioned Complainant, alleges as follows:

1. Generally denies the allegations or denies knowledge or information sufficient to form a belief as to the truth of the allegations 1 through 9 in the said Complaint, except admits that RDD is a freight forwarder under the FMC Rules.
2. Denies knowledge or information sufficient to form a belief as to the truth of the allegation contained in Paragraphs 10 through 20 of the said Complaint, except admits that RDD did appear to have issued but could not verify the Bills of Lading in question.
3. Denies knowledge or information sufficient to form a belief as to the truth of the allegation contained in Paragraphs 11 through 25 of the Complaint.
4. Denies the allegation contained in Paragraphs 26 through 27 of the said Complaint.

AS AND FOR A FIRST AFFIRMATIVE DEFENSE

5. The said Complaint should be dismissed by lack of personal or subject matter jurisdiction over the Respondent due to improper service of process and/or verification.

AS AND FOR A SECOND AFFIRMATIVE DEFENSE

6. Complainant has failed to state any claim upon which relief can be granted.

AS AND FOR A THIRD AFFIRMATIVE DEFENSE

7. Complainant's claims should be barred and dismissed for lack of standing to sue because the Complainant has been improperly represented under 46 CFR Section 502.

AS AND FOR A FOURTH AFFIRMATIVE DEFENSE

8. Complainant's claims shall be barred or limited under the doctrines of Unclean Hands and Unjust Enrichment.

AS AND FOR A FIFTH AFFIRMATIVE DEFENSE

9. Complainant's claims shall be barred or limited under the doctrine of latches.

AS AND FOR A SIXTH AFFIRMATIVE DEFENSE

10. Complainant's damages as alleged in its claims shall be barred and/or limited by its own legal obligations, and its failure to avoid and/or mitigate damages, if any, and other failures as may be discovered later.

COUNTERCLAIM

11. Respondent repeats each and every admission, denial, and denial of knowledge or information sufficient to form a belief as

set forth in Paragraphs 1 through 10 as if fully set forth herein.

12. Upon information and belief, Complainant has conspired with its counterparts in a scheme to defraud the Respondent out of monies bonded with the FMC.

13. This allegation is based upon the fact that Complainant has never alerted to the Respondent as to its problems with its consignee and refused to pursue or collect monies for the goods in question from its consignee.

ORAL ARGUMENT

14. When appropriate, Respondent requests oral argument be held in New York, New York.

WHEREFORE, Respondent RDD FREIGHT INTERNATIONAL INC., demands judgment/determination in its favor:

- a. dismissing the Complainant's Complaint in its entirety and with prejudice;
- b. granting Respondent's Counterclaims;
- c. awarding reasonable cost and attorneys fees; and
- d. any other relief that the Commission deems just and proper.

Dated: New York, New York
March 23, 2017.


REN RONG PAN, ATTORNEY AT LAW
11 East Broadway, Suite 4B
New York, NY 10038
(212) 406- 5533 (SDNY ID RP7378)
Attorney for Respondent
RDD FREIGHT INTERNATIONAL INC.
e-mail: rpanlaw@yahoo.com

VERIFICATION

STATE OF NEW YORK)
)SS.
COUNTY OF NEW YORK)

YIWEN HU, being duly sworn, deposes and says, under penalties of perjury:

1. I am a Principal Officer of RDD FREIGHT INTERNATIONAL INC. , Respondent Corporation named in the within action and have read the foregoing Verified Answer with Counterclaims. The same is true and correct to my own knowledge, except as to the matters therein stated to be the matters therein stated to be upon information and belief, and as to those matters, I believe them to be true.

Dated: New York, New York
March 23, 2017

YIWEN HU

Sworn to before me
This 23rd day of March, 2017

Notary Public

REN RONG PAN
Notary Public, State of New York
ID No. 02PA4974369
Qualified in New York County
Commission Expires Nov. 13, 20 18

AFFIDAVIT OF SERVICE

The undersigned, employed at Ren Rong Pan Attorney at Law, hereby certifies, under penalties of perjury, that, on March 24, 2017, a copy of the within the Respondent's Verified Answer with Counterclaim and Notice of Appearance was served, within the time permitted by law, Postage Prepaid and Properly Deposited, upon following parties:

1. Via Verified E-Mail: secretary@fmc.gov

Rachel Dickon, Assistant Secretary of the FMC Commission
800 North Capital Street, N.W.
Washington, DC 20573-0001

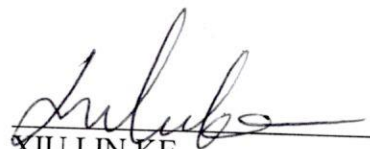
2. Via Priority/Express Mail with One Original and Four Copies to:

Hon. Clay G. Guthridge,
Chief of Administrative Law Judge
800 North Capital Street, N.W.

Rachel Dickon, Assistant Secretary of the FMC
800 North Capital Street, N.W.
Washington, DC 20573-0001

3. Via Regular First Class Prepaid Mail to:

Hangzhou Qianwang Dress Co., Ltd.
c/o Lan Ye
36-38 Main Street
Flushing, NY 11355

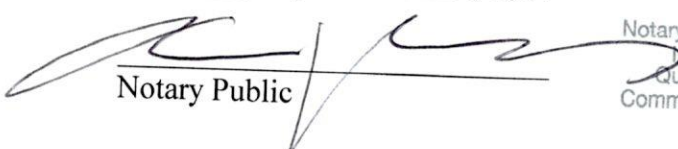


XIU LIN KE

REN RONG PAN, ATTORNEY AT LAW
11 East Broadway, Suite 4B
New York, NY 10038

Sworn to before me

This 24th Day of March 24, 2017



Notary Public

REN RONG PAN
Notary Public, State of New York
ID No. 02PA4974369
Qualified in New York County
Commission Expires Nov. 13, 2018